

25STCP04631 25STCP04631

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-04

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Case Number: 25STCP04631 Hearing Date: September 4, 2026 Dept: 833

Barry Rosen, Case No. 25STCP04631

Hearing:

September 4, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Clark Drive Homeowners Association, et.

al. Judge: Joseph Lipner

Order Regarding

Petition for Writ of Mandate

INTRODUCTION

Petitioner Barry Rosen ("Petitioner") moves for a writ of mandate directing the Court to (1) invalidate the Clark Drive Homeowners Association's September 30, 2025 board of directors election and the Jun 30, 205 adoption of its election results; (2) seek a determination that Deborah Bushell ("Bushell"), Payam Yashar ("Yashar"), and Christine Barons ("Barons") were not validly elected and cannot undertake or implement the tasks of correcting their own election; and (3) require a new proper, compliant election.

The Court agrees with Rosen that

there were several violations of the election rules:

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Bylaw 6.1 (Section B of the Discussion)

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Civil Code § 5115, subd. (b) (Section F of the Discussion)

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Rule XII of the Association (Section J of the Discussion)

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Civil Code § 5120, subd. (a) (Section L of the Discussion)

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Civil Code § 5120, subd. (b) (Section K of the Discussion)

The Court will hear argument from the parties as to whether these violations affected the result of the election.

The Court also requests argument on the following questions:

1.

There is a sharp disagreement between the parties as to whether a physical meeting took place outside of Unit #4. The tentative below concludes that it did, but the Court requests that the parties address this factual issue. Moreover, if there were no physical location, would that have been a rule violation affecting the result?

2.

Rosen's declaration is equivocal as to whether he would have run for election. Why?

The parties are, of course, also permitted to argue with respect to any other

aspect of this tentative with which they disagree.

BACKGROUND

This petition concerns the Clark Drive Homeowners Association ("Association"), a common interest development under the David-Stirling Common Interest Development Act. (PA 2.)

The Association oversees a real property development consisting of eight individual condominium units located at 136 South Clark Drive, Los Angeles, California. (PA 2.) Membership in the Association is appurtenant to ownership of a unit and property owners share a common set of financial obligations. (PA 2.) Each owner receives only one vote per unit regardless of how many owners. (PA 8.)

Under the governing documents of the Association, elections are required to be held yearly, in conjunction with a required annual membership meeting, and are to be done by a secret ballot. (PA 8.) If the board fails or refuses to timely hold an annual membership meeting (and election), the Los Angeles Superior Court may summarily order the annual meeting to be held. (PA 8.)

Bushell has claimed to be President of the Association of Board of Directors since 2021. (PA 2.) Yashar has claimed to be Treasurer of the Association Board of Directors since 2019. (PA 3.) Barons has claimed to be appointed to the Association Board of Directors since 2025. (PA 3.)

In March 2024, Petitioner learned of an alleged Association election that had purportedly happened in November 2023. At the time, Petitioner was aware that the Association had never adopted election rules pursuant to statutory requirements of the David-Stirling Act nor had it ever conducted elections consistent or compliant with the secret ballot requirements of the governing documents of the Association and that it did not have an elected board of directors (PA 9.) Petitioner was further aware that no required annual meetings of members were ever held for at least over a decade or more. (PA 9.)

On September 12, 2024, Petitioner filed an action to reverse or void the alleged November 2023 election along

with the defective 2019 and 2020 elections for want of election rules; for unlawful acts and failures to comply with the Governing Documents, Davis–Stirling Common Interest Development Act and for voter suppression. (PA 10.)

On April 11, 2025, the Court (Chalfant, J.) issued a judgment directing that the alleged November 2023 election was invalid for failure to adopt election rules and for voter suppression. (PA 10.) The Court also ruled that an election was to be held in full compliance with the Davis–Stirling Common Interest Development Act and finished by September 30, 2025, and directing Bushell, Yashar and Mary Muller to conduct the new election “as someone has to initiate the process.” (PA 10.)

In June 2025, Muller sold her condominium unit, making her ineligible as a member of the Association. (PA 10.) Two other condominium units were sold between May and July 2025. (PA 10.)

On July 6, 2025, Petitioner received a letter informing him that new election rules had been adopted on June 30, 2025 despite the fact that Petitioner had never received a copy of any proposed new election rules for a 28-day review and comments by members as required by Civil Code § 4360, subd. (a) prior to that date. (PA 11.)

On July 7, 2025, Petitioner also received a letter in the mail from HOA Election Experts LLC informing that an election would be held on September 30, 2025, at 5:45pm at an annual meeting of members and calling for candidates to send nominations to Experts by no later than August 1, 2025. (PA 11.)

On July 12, 2025, Petitioner sent a veto letter by mail pursuant to Civil Code § 4365 to the Association challenging the adoption of election rules for failure to comply with the 28-day review/comment period by all members under Civil Code § 4360, subd. (a) and because the election rules were invalid ab initio under Civil Code § 4350, subd. (c) as they conflict with bylaw 6.1 requiring a nomination committee consisting of 2 non-board members. (PA 13.)

On August 4, 2025, Petitioner received a

letter in the mail from HOA Election Experts LLC consisting of a 2nd notice of an annual meeting of members on September 30, 2025, at 5:45pm and listing only Bushell and Yashar as Candidates for the election to be held on that date in conjunction with the annual meeting. (PA 13.)

On September 2, 2025, Petitioner received a letter in the mail from HOA Election Experts LLC consisting of a ballot, envelopes and an official notice of an annual meeting of members for September 30, 2025, at 5:45pm listing the meeting as being hybrid virtually on Zoom and on site in front of Unit #4 and informing that HOA Election Experts LLC would participating virtually. (PA 13.)

Petitioner attempted to attend the alleged election/annual meeting members at the time and physical location in the HOA courtyard in front of unit #4 specified in the September 2, 2025, letter (and another letter that Plaintiff had received on September 19, 2025). (PA 14.) Nobody was present outside unit #4 and Petitioner was not able to connect to the meeting on Zoom. (PA 14-15.)

Because the meeting did not take place, an election could be held as the votes must be counted and tabulated by the inspector of elections (or designees of the inspector) in public at a properly noticed open annual meeting of members per Civil Code § 5120, subd. (a). (PA 15.)

No required David-Stirling notice of election results was sent by the board to Petitioner or all members as required by Civil Code § 5120, subd. (b). (PA 16.)

On October 30, 2025, Bushell and Yashar appointed Barons at a board meeting in violation of the Davis Stirling Open Meeting action (Chapter 6, Article 2) without ever having been elected and in violation of the limitations on the board under the Declaration of Covenants, Conditions, and Restrictions 4.3.3/4.3.3.5. (PA 53.)

LEGAL STANDARD

A. Corporations Code Section 7616

Non-profit

mutual benefit corporations are governed by Corp. Code section 7110 et seq.

Corp. Code section 7616 ("section 7616") governs appointments for non-profit mutual benefit corporations.

"Upon

the filing of an action therefor by any director or member or by any person who had the right to vote in the election at issue, the superior court of the proper county shall determine the validity of any election or appointment of any director of any corporation." (Cal. Corp. Code, § 7616, subd. (a).)

"Upon

the filing of the complaint, and before any further proceedings are had, the court shall enter an order fixing a date for the hearing, which shall be within five days unless for good cause shown a later date is fixed, and requiring notice of the date for the hearing and a copy of the complaint to be served upon the corporation and upon the person whose purported election or appointment is questioned and upon any person (other than the plaintiff) whom the plaintiff alleges to have been elected or appointed, in the manner in which a summons is required to be served, or, if the court so directs, by registered mail; and the court may make such further requirements as to notice as appear to be proper under the circumstances." (Cal. Corp. Code, § 7616, subd. (c).)

"The

court, consistent with the provisions of this part and in conformity with the articles and bylaws to the extent feasible, may determine the person entitled to the office of director or may order a new election to be held or appointment to be made, may determine the validity, effectiveness and construction of voting agreements and voting trusts, the validity of the issuance of memberships and the right of persons to vote and may direct such other relief as may be just and proper." (Cal. Corp. Code, § 7616, subd. (d).)

B. Davis-Stirling Act

The

Davis-Stirling Common Interest Development Act ("Davis-Stirling Act") Civil Code §4200 et seq., applies to common interest developments, including a homeowners' association. An "association" means a non-profit corporation or unincorporated association created for the purpose of managing a common interest development. (Civil Code § 4080.)

An

operating rule of a homeowners association is valid and enforceable only if the rule is (a) in writing; (b) within the authority of the board conferred by law or by the declaration, articles of incorporation or association, or bylaws of the association; (c) not in conflict with the governing law and the declaration, articles of incorporation or association, or bylaws of the association; (d) adopted, amended, or repealed in good faith and in substantial compliance with the requirements of this article; and (e) reasonable. (Civil Code § 4350.)

The

board must provide general notice of a proposed rule change at least 28 days before making the rule change. (Civil Code § 4360, subd. (a).) The notice shall include the text of the proposed rule change and a description of the purpose and effect of the proposed rule change. (Ibid.) A decision on a proposed rule change shall be made at a board meeting, after consideration of any comments made by association members. (Civil Code § 4360, subd. (b).)

The

election and removal of a homeowners' association's directors is governed by Article 4. (Civil Code § 5100 et seq.) An association shall hold an election for a seat on the board of directors at least once every four years. (Civil Code § 5100, subd. (a)(2).) The requirements of Article 4 include election by acclamation (Civil Code § 5103), the adoption of operative election rules (Civil Code § 5105), an independent third party as inspector of elections (Civil Code § 5110), notice of election, ballots, quorum, and cumulative voting (Civil Code § 5115), counting and reporting election results (Civil Code § 5120), and custody of election materials (Civil Code § 5125).

A

homeowners' association member may file a civil action for declaratory, injunctive, or writ relief for violation of Article 4 within one year of the date that the inspector notifies the board and membership of the election results, or the cause of action accrues, whichever is later. (Civil Code § 5145, subd. (a).) If the member establishes by a preponderance of the evidence that election procedures or adoption of pertinent rules were not followed, the court shall void the election unless the association establishes that its non-compliance did not affect the results of the election. (Civil Code § 5145, subd. (a).) A member who prevails on such a challenge shall be entitled to reasonable attorney fees and costs. (Civil Code § 5145.)

An

association or member may not file a civil action unless the parties have endeavored to submit their dispute to alternative dispute resolution. (Civil Code § 5930(a)-(b).) “Alternative dispute resolution” means mediation, arbitration, or other non-judicial procedure involving a neutral party. (Civil Code § 5925, subd. (a).) The form of alternative dispute resolution chosen pursuant to the Davis-Stirling Act may be binding or nonbinding, with the voluntary consent of the parties. (Civil Code § 5925, subd. (a).) The party commencing the action shall file with the initial pleading a certificate of compliance with respect to alternative dispute resolution. (Civil Code § 5950.)

DISCUSSION

A. The new election rules were not invalid based on when Petitioner received notice of them

On June 30, 2025, the Association formally adopted new election rules. (PA 89.) Petitioner contends that this decision violated Civil Code Section 4360, subd. (a) because the Board did not provide general notice of a proposed rule change 28 days before making the rule change. (Rosen Decl., ¶ 10.)

Petitioner's support for this claim is that he did not receive notice of the adoption of election rules until July 7, 2025. (Rosen Decl., ¶ 10.)

However, the property manager for the Association has introduced evidence that she sent a letter addressed to "Clark Drive HOA Homeowners" enclosing the proposed Election and Voting Rules and stating that the Association was initiating a 28-day homeowner review period ending Thursday, June 12, 2025. (Wood Decl., ¶¶ 3, 4.)

The fact that Petitioner did not receive the election rules until July 7, 2025 does not indicate that the Association failed to comply with the law. The Davis-Stirling Act states that “[i]f a document is delivered by mail, delivery is deemed to be complete on deposit into the United States mail.” (Civil Code § 4050, subd. (b).)

The

Court gives more weight to the evidence Wood has provided, as it shows what was sent to all homeowners, not just what Petitioner received.

Therefore,

the Court finds the Association did not violate Civil Code Section 4360, subd. (a).

B. The structure of the nominating committee

did not comply with the governing bylaws of the Association

Petitioner

also claims the election results are invalid because they are in conflict with the governing bylaws of the Association. According to Petitioner, the nomination committee did not consist of 3 members, 2 of whom were non-board members, to move the process forward. (Rosen Decl., ¶¶ 16, 18.) That is required by Bylaw 6.1, which states:

Nomination

for election to the board shall be made by a nominating committee consisting of three (3) persons. Nominations also may be made from the floor at each annual meeting. The nominating committee shall consist of a chairman, who shall be a member of the board, and two (2) other persons who may be either members of the Association or representatives of Declarant.

Each member of the nominating committee shall be appointed by the board to serve for a period of one year and vacancies shall be filled by the board.

The nominating committee shall make as many nominations for election to the board as it may, in its discretion, determine, but not less than the number of vacancies to be filled. Nominations may be made from among members or nonmembers.

(PA 117-118.) To the contrary, the election rules provided that the Board itself shall act as the nominating committee. (Rosen Decl., ¶ 7.)

The Association argues that when there is a conflict between the governing documents and the law, the law shall prevail. (Civil Code § 4205, subd. (a).) The Association argues that Section 6.1 conflicts with Civil Code § 5105, subd. (a)(3), which states, “[a] nomination or election procedure shall not be deemed reasonable if it disallows any member from nominating themselves for election to the board.”

The

Court disagrees that the bylaws and Civil Code § 5105, subd. (a)(3) are in conflict with each other. The two sections deal with different things. Bylaw 6.1 deals with the specifics of the constitution of the nomination committee;

it says nothing about whether persons can also nominate themselves. Civil Code § 5105, subd. (a)(3) says nothing about how a nomination committee shall be constituted but does say that nomination cannot restrict self-nomination.

The

Association has not offered any evidence to refute Petitioner's evidence and to demonstrate that a nominating committee existed that complied with Bylaw 6.1.

Therefore,

the Court finds the Association was out of compliance with Bylaw 6.1.

C. Petitioner's claim that the Association should have reversed the rules change is not persuasive

Petitioner

claims that the Association should have reversed the new election rules after he issued a letter requesting a special vote to do just that. (Rosen Decl., Exh. 12.)

Civil

Code § 4365, subd. (a) states: "[m]embers of an association owning 5 percent or more of the separate interests may call a special vote of the members to reverse a rule change."

Civil Code § 4365, subd. (b) states:

"A special vote of the members may be called by delivering a written request to the association. Not less than 35 days nor more than 90 days after receipt of a proper request, the association shall hold a vote of the members on whether to reverse the rule change..."

The evidence shows that Petitioner's letter was delivered to a mailbox in Encino, California. (PA 119.) However, the significance of this Encino mailbox is unclear. The Property Manager for the Association stated that "Neither Icon Realty nor the Board received a letter from Plaintiff Barry Rosen dated July 12, 2025 invoking Civil Code section 4365..." (Wood Decl., ¶ 9.)

The Association cannot be charged with failing to act on a demand it never received.

D. Petitioner's claim that the doctrine of fair procedure was violated is confusing and contains little legal authority

Petitioner

spends a considerable amount of time on the so-called "doctrine of fair procedure." (See Opening Brief, pp. 10-13.) This section of the opening brief meanders over a number of topics and lacks citation to the legal authority.

A

significant portion of this section discusses Petitioner's belief that the owners of Units 2, 6, and 7 were somehow excluded or disenfranchised from the election. Petitioner presents no competent evidence to indicate that the owners of Unit 2, 6, and 7 were denied the right to vote. There are no declarations from the owners of those units, for example. The memorandum of points and authorities says they "may not have participated in the election." (Opening Brief, 4:5-7.) Petitioner's sole documentary support consists of photographs of two envelopes addressed to a former owner of Unit 6 found on a common-area mailbox. (PA 110–111.) This shows at most that the escrow-driven ownership change for one unit had not yet propagated to one mailing list at the beginning of July 2025; it does not and cannot establish that any current member failed to receive the election notices and ballots mailed weeks and months later. Evidence presented by Respondents indicates that the owners of Units 2, 6, and 7 were sent proposed rules, the call for candidates, and the ballot package. (Wood Decl., ¶ 7; Alzoubi Decl., ¶ 7.)

Page

11 of the memorandum of points and authorities goes back and forth between disqualification based on voting (Opening Brief, 11:7-8) and disqualification of candidacy. (Opening Brief, 11:21-23.) Petitioner never introduces competent evidence to suggest he was on the ballot and then off the ballot and he never introduces any evidence that the owners of Unit 2, 6, and 7 were candidates for the Board of the Association. Petitioner's argument appears to be based on what he believes, not what actually occurred. (Opening Brief, 14:16-18.)

Indeed,

Petitioner requests that the Court "inquire" whether four or eight members were suspended in good faith and in a fair and reasonable manner. (Opening Brief, 11:12-14.) It is not the Court's role to conduct discovery. The record itself shows that the inspector's own Official Election Certification stated, "the number of Members entitled to vote on matters at the Annual Meeting was 8." (PA

319.) No units were excluded or suspended from voting.

The

record before the Court does not show that any member of the Association was expelled, suspended, or disqualified from voting or from candidacy of the Board of Directors.

E. The statutory notice for candidates was met

Civil

Code § 5115, subd. (a) provides that “[a]n association shall provide general notice of the procedure and deadline for submitting a nomination at least 30 days before any deadline for submitting a nomination.”

Petitioner

contends that he did not receive notice of the deadline for submitting a nomination 30 days before a deadline. (Rosen Decl., ¶ 12.) The deadline to submit a nomination was listed on the notice as August 1, 2025. (PA 112-114.) Petitioner did not receive the notice until July 7, 2025. (Rosen Decl., ¶ 12.)

However, the postmark indicates it was put in the mail on July 2, 2025. (PA 114.) The Davis-Stirling Act states that “[i]f a document is delivered by mail, delivery is deemed to be complete on deposit into the United States mail.” (Civil Code § 4050, subd. (b).)

July

2, 2025 is within 30 days of August 1, 2025.

Therefore, the Association did not violate Civil

Code §

5115, subd. (a).

F. The statutory requirement concerning notice of the physical address of the meeting was not met

Civil

Code § 5115, subd. (b) provides that an association must provide general notice of all of the following 30 days before the ballots are distributed: (1) the date and time by which, and the physical address where, ballots are to be returned by mail or handed to the inspector or inspectors of elections; (2) the

date, time, and location of the meeting at which a quorum will be determined, if the associations' governing documents require a quorum, and at which ballots will be counted; and (3) the list of all candidates' names that will appear on the ballot.

Petitioner

contends that the notice of August 2, 2025 fully omitted the statutorily required physical meeting location for quorum and ballot counting and no biographies or qualifications were provided. (Opening Brief, 13:27-14:1.) Petitioner notes that the actual ballots were mailed/postmarked August 29, 2025, so the August 2 general notice was less than 30 days before the ballots were distributed. (Opening Brief, 14:1-14.4.)

The

Association's own business records, provided by the inspector who administered the election show that the second general notice was deposited in the mail on August 1, 2025, and the ballot package was deposited in the mail on August 31, 2025. (Alzoubi Decl., ¶¶ 6, 7.) The Davis-Stirling Act states that "[i]f a document is delivered by mail, delivery is deemed to be complete on deposit into the United States mail." (Civil Code § 4050, subd. (b).) Therefore, the second general notice was timely deposited to residents.

The

second general notice include the candidate list, the date and time of the election, and what constituted a quorum. (PA 122-123). The second general notice did not include the location of the meeting, and merely says "participation details to follow." (PA 122-123).

Neither

party briefed the significance of not including the location on the second general notice. The Court finds that the lack of a location violates the plain text of Civil Code § 5115, subd. (b).

G. The statutory requirement about mailing of ballots was met

Civil Code § 5115,

subd. (c) provides that "[b]allots and two preaddressed envelopes with instructions on how to return ballots shall be mailed by first-class mail or delivered by the association to every member not less than 30 days prior to the

deadline for voting...”

On September 2,

2025, Petitioner received a ballot, envelopes, and an official notice of an

annual meeting of members for September 30, 2025. (Rosen Decl., ¶ 20.) Petitioner contends that this violates Civil Code § 5115, subd. (c)

since Petitioner did not receive the ballot 30 days before the election.

The Davis-Stirling Act states that “[i]f a document is delivered by

mail, delivery is deemed to be complete on deposit into the United States mail.”

(Civil Code §

4050, subd. (b).) The election inspector reports that the ballot package was

deposited in the mail to the Association’s membership on August 31, 2025.

(Alzoubi Decl., ¶¶ 7.)

Therefore, the Association did not violate Civil

Code §

5115, subd. (c).

H. The inspector of elections was properly

retained and independent

Civil

Code § 5110, subd. (a) requires that an association select an independent third party or parties as an inspector of an election.

Petitioner

contends that the Association’s third party consultant, Election Experts, LLC,

was not put forward for formal contracting consideration by the Association in

violation of the Declaration

of Covenants, Conditions, and Restrictions Section 4.3.3 and Section 4.3.3.5.

(Opening Brief, 11:27-12:1.)

Neither of these two sections mentioned in the

brief are relevant. Section 4.3.3 restricts the Board's authority, absent a

majority member vote, only as to five enumerated categories of action. Among

them, at subsection 4.3.3.4, is entering “into any contract with a third person

wherein the third person will furnish goods or services for the Common Area or

the Association for a term longer than one year.” (PA 143.)

The contract with Election Experts was for one election, and it was not for longer than one year. Therefore, Section 4.3.3 is not grounds for concluding that the Association did not follow its bylaws.

I. The election really did take place

Bushell

has provided evidence that a meeting occurred on September 30, 2025. (Bushell Decl., ¶ 7.) The election inspector announced that a quorum had been met, as four of the Association's eight units had submitted valid secret ballots, and announced the results of the election: Bushell received six votes and Yashar received five votes. (Bushell Decl., ¶ 8.) The election inspector executed a written official election certification memorializing the results on the evening of September 30. (Bushell Decl., ¶ 8, Exh. F.) An individual identifying himself as Gustavo Lamanna attempted to join the virtual meeting, and the Board considered his attempted participation to have been made under false pretenses and removed him from the meeting. (Bushell Decl., ¶ 9.)

Petitioner's counsel has identified no statute that allows him the right to attend. The "Rights of Election Observers" authorities on which Plaintiff relies (California Code of Regulations, title 2, section 20872 and Elections Code section 15004) govern public elections conducted by governmental elections officials. They confer no rights whatsoever with respect to the membership meeting of a private nonprofit mutual benefit corporation.

Petitioner's images provided at PA 135 and 136 prove only that a meeting did not take place in the short time Petitioner stood in front of Unit 4. The photographs do not establish that the meeting did not take place at all.

Petitioner argues that the meeting had to take place in the development. (Reply, 4:8.) This is an incorrect argument, as Petitioner has cut off the full rule from his reply brief: "All such meetings shall be held within the development or as close thereto within said County as practicable." (PA 179.)

Petitioner also complains that the property manager noticed the election for October 15, not September 30. (PA 290, 294.) However, Petitioner is citing emails from the property manager to the third

party consultant. Petitioner never cites any evidence to indicate that members of the Association received notice of the wrong date of the election.

J. The registration of members did not take place

Rule

XII of the Rules that the Association adopted for this election state, “[a] Member who chooses to vote in person at a meeting of the Members or Board must present themselves at the registration table area at the meeting to submit their ballot.” (PA 282.)

The

Official Notice of Annual Meeting set the meeting for Tuesday September 30, 2025 at 5:45pm and the Official Notice identified the “Physical Address: On-site, in front of unit #4.” (PA 335, 337.) However, the official notice also warned Association members that there would be no opportunity to hand deliver the ballot at the physical meeting location. (PA 337.)

The

Court does not find any basis in the election rules for the Association to decide that there would be no opportunity to hand deliver a ballot.

Therefore,
the Court finds that the Association violated Rule XII.

K. The requirements regarding the reporting of election results were not met

Civil

Code § 5120, subd. (b) provides that “[t]he tabulated results of the election shall be promptly reported to the board and shall be recorded in the minutes of the next meeting of the board and shall be available for review by members of the association. Within 15 days of the election, the board shall give general notice pursuant to Section 4045 of the tabulated results of the election.”

Petitioner

argues that no required notice of election results was sent to the Board of the Association. (Rosen Decl., ¶¶ 26-27.) Exhibit G to the Bushell Declaration shows that the tabulated results

were not recorded in the minutes of the October 30, 2025 Board meeting. Respondents do not identify any evidence of the Board giving notice of the tabulated election results.

Therefore, the Association violated Civil Code § 5120, subd. (b).

L. The voting counting was not done in public

Civil

Code § 5120, subd. (a) provides that, “[a]ll votes shall be counted and tabulated by the inspector or inspectors of elections, or the designee of the inspector or inspectors of elections, in public at a properly noticed open meeting of the board or members.”

Petitioner

has presented evidence that Bushell and Yashar appointed Barons as a member of the Board of the Association on October 30, 2025. (Rosen Decl., ¶ 28.) Petitioner states that he is “not aware” of votes being counted in public as is required, and Petitioner was not able to exercise his right to witness the counting and tabulation of the votes. (Civil Code § 5120, subd. (a); Rosen Decl., ¶ 24.)

The

election inspector has provided evidence that he announced voter turnout and the results of the election in the meeting on September 30, 2025. (Alouzbi Decl., ¶ 8.) The inspector executed a written Official Election Certification memorializing these results that same evening. (Ibid.)

The Court disagrees that this is proper under the statute. The statute requires that the votes be counted and tabulated in public. All the election inspector did was announce the vote totals.

Therefore, the evidence shows that the Association did violate Civil Code § 5120, subd. (a).

M. The Board did not violate its declaration of covenants, conditions, and restrictions when it appointed Christine Barons

On

October 30, 2025, Bushell and Yashar appointed Barons as a member of the Board of Directors of the Association. (Rosen Decl., ¶ 28.)

Petitioner contends that this appointment violated the Declaration of Covenants, Conditions, and Restrictions, which requires a majority of the Association to “[f]ill a vacancy on the board created by the removal of a governing body member.” (PA 143.) However, the Declaration of Covenants, Conditions and Restrictions says nothing about filling a vacancy created by an under-subscribed election that simply produced fewer directors than open seats.

Corporations Code § 7224, subd. (a) provides that unless the articles or bylaws provide otherwise, a vacancy “other than a vacancy created by the removal of a director” may be filled by approval of the board.

The other two members of the Board approved Barons’ appointment. The Court sees no issue with this appointment. There was proper notice and agenda posted before the Board meeting. (Wood Decl., ¶ 10.) The evidence indicates Barons is a member of the Board.

N. The Court requests argument on whether these violations affected the result of the election

The Court has identified several violations of law and rules:

.
Bylaw 6.1 (Section B of the Discussion)

.
Civil Code § 5115, subd. (b) (Section F of the Discussion)

.
Rule XII of the Association (Section J of the Discussion)

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Civil Code § 5120, subd. (a) (Section L of the Discussion)

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Civil Code § 5120, subd. (b) (Section K of the Discussion)

The

Court has therefore now agreed with Rosen as to certain violations and disagreed as to others. The Court requests argument as to whether the violations identified by the Court affected the result. The Court has in mind the applicable burden of proof: the Association must show that these violations did not invalidate the result.

As

noted above, the Court has two other questions.

First,

did the physical meeting truly take place in front of Unit 4 and if not does it make a difference to the result?

Second,

Rosen used equivocal language in his declaration, never stating that he would have run for election. Specifically, he states:

I am informed and believe that even if the election was valid, which is not, alleges, that I was purposely denied the right to become a candidate and vote which would have impact the election and prevented the appointment of Barons to the Board; to-wit, Rosen had the right to nominate himself at 5:45pm in front of Unit 4 on September 30, 2025, cast his ballot for himself and under cumulative voting lodge three votes for himself on the ballot.

(Rosen Decl., ¶ 29.) This

statement never says that Petitioner intended to run for the Board, only that he “had the right” to do so. The election inspector confirms that Petitioner did not receive a nomination from Petitioner. (Alzoubi Decl., ¶ 5.)